

HEADNOTE

“The question whether an action for a declaration of non-infringement of a patent can be filed before its grant is not a question of competence of the Unified Patent Court [Art. 32 UPCA] but is a question of admissibility of the instituted claims.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 4 594 194

LABELLING MODULE CONFIGURED
FOR LABELLING WITH PARTIAL
LABELS

KEYWORDS

remedies

competence

admissibility

declaration of non-infringement

opt-out

Article 32 Competence of the Court

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to a labelling module configured for labelling with partial labels. According to the headnotes of the decision, pre-grant declarations of non-infringement raise an admissibility question. This is not a question of the court's competence. Rather, the issue concerns whether the instituted claims are legally permissible. The UPC must therefore assess admissibility of the claims separately from its jurisdictional authority.